

All The Right(s) Moves

Celebrities—from Amitabh Bachchan to Anil Kapoor—have been moving courts to protect their personality rights. The latest to join the list is Jackie Shroff

BY KRISHNA GOPALAN

► **BHIDU IS AN** iconic Mumbai slang that actor Jackie Shroff brought to the mainstream. And now he wants to own the rights to it too. In May, triggered by memes circulating without his consent, Shroff filed a petition with the Delhi High Court to protect his name, publicity, and personality rights.

But this is not the first time that an ac-

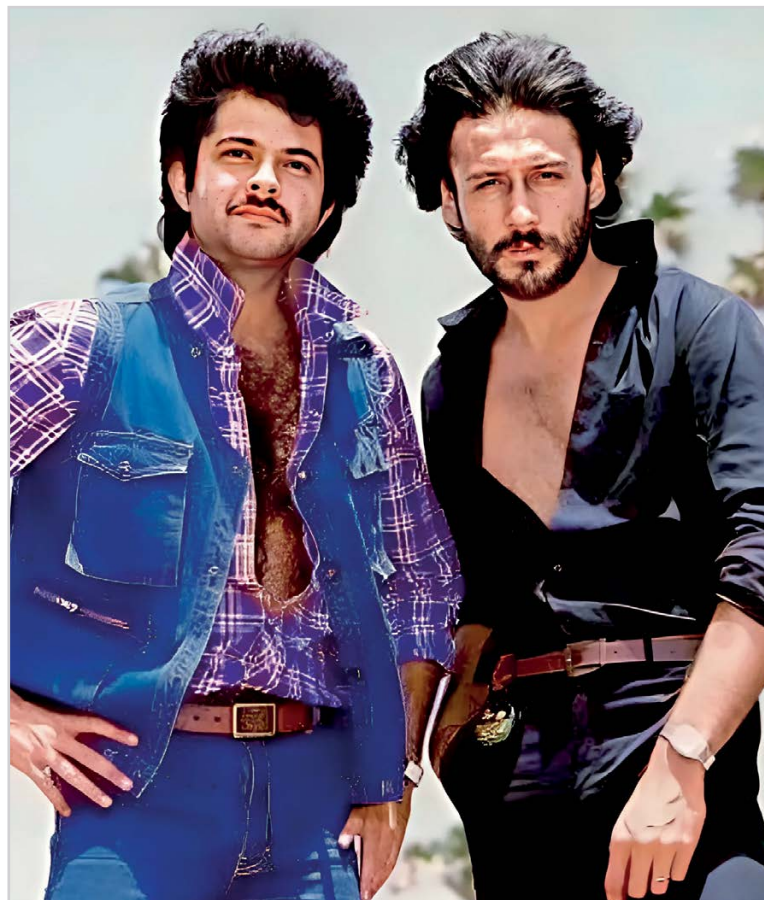
THE RIGHTS DIRECTION

In 2023, Anil Kapoor (left) claimed rights on his *jhakaas* catchphrase. Now, Jackie Shroff has approached the courts

tor has taken the legal route on the issue of identity protection. In 2022, the Delhi High Court said Amitabh Bachchan's voice and images can be used only after the actor's approval. It was followed by Anil Kapoor, who claimed rights on his *jhakaas* catchphrase, along with mannerisms, voice, and likeness. "Celebrities are more aware of the implications today and this will develop through case laws," says Avadhi Joshi, Partner at legal firm VNA Partners. "The issue gets debatable when a characteristic of an actor is used with commercialisation in mind and in the process, perhaps, harms their reputation." What happens then to a radio jockey who impersonates an actor and the station gains fame? The law is emerging and there is no clear answer yet.

"It may not be just a copyright issue... It could be talking like someone, where the objective is to invoke a memory of that person," says Nishant Kewalramani, Senior Partner, Edipolis Counsels, which focuses on IP protection. Using a particular word like *bhidu* or *jhakaas* in general parlance is not the issue. "There is a problem when you try to impersonate Jackie Shroff or Anil Kapoor while promoting a product or for some other commercial purpose," he explains. He expects more debates around these areas only to increase. "It is really about exploiting a likeness of a person without consent." Surely, there is no question of a product with a brand name *bhidu* not being allowed to enter the market if such product classification is not protected by the respective personality.

The other big question is what happens when AI comes into the picture. "Obviously, it will complicate a lot of things," says Kewalramani. "Amendments to the copyright law need to be made at the earliest," feels Joshi. **BT**



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